

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.2 PLANNED DEVELOPMENT - REGULATING PLAN OR DEVELOPMENT MASTER PLAN, SECTION 5.1.3 OFFICIAL ZONING MAP, AND SECTION 5.6.2 PUD – PLANNED UNIT DEVELOPMENT DISTRICT OF THE UNIFIED DEVELOPMENT CODE, AMENDING ORDINANCE NO. 3841 BY MODIFYING CERTAIN STANDARDS OF THE ADOPTED DISTRICT, PLANNED UNIT DEVELOPMENT (PUD), FOR POINTE PLAZA, 6th FILING, CHEYENNE, LARAMIE COUNTY, WYOMING. (LOCATED TO THE NORTHWEST OF THE INTERSECTION OF GARDENIA Dr. AND POWDERHOUSE RD.)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owners of the property described herein have submitted an amendment to the Point Plaza Planned Unit Development ("PUD") pursuant to Section 2.2.2.b and Section 5.6.2.f of the Cheyenne Unified Development Code ("UDC").

Section 2. That on August 1, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed amendments to the PUD Final Plan that is the subject of this ordinance, and recommended denial of said amendments to the PUD Final Plan.

Section 3. That the Governing Body of the City of Cheyenne finds that the amended Pointe Plaza PUD Final Plan meets the criteria specified in Section 2.2.2.d of the UDC.

Section 4. That in accordance with Section 2.2.2 Planned Development - Regulating Plan Or Development Master Plan and Section 5.6.2 PUD – Planned Unit Development District of the UDC, the application is hereby approved.

Section 5. That, in accordance with UDC Section 5.6.2, the land use, design and development standards and guidelines established in Ordinance No. 3841 shall be amended as follows:

Section 5. Uses By Right.

6. Block 1, Lots 25-31
 - A. Loft Residential – Subject to Section 6
 - B. Community Center
 - C. General and Medical Offices
 - D. Retail & Wholesale Establishments
 - E. Service Business
 - F. Food Establishments
 - G. Full Service Restaurant
 - H. Entertainment and recreation facilities and uses.

- I. Child Care Center, minor and major
- J. Multi-family – Subject to Section 6

Section 6. Maximum Densities and Maximum Building Coverage.

Maximum Property Coverage Commercial.

Blocks 1 and lots within Block 2 and 3 - Total building, parking and outdoor storage area shall not exceed eighty-five (85) percent of the property area for each block.

Block 1 will contain not more than 90,000 square feet of commercial space, not more than 20 townhouse units on Lots 4 through 23 and not more than 45 multi-family units on Lot 24. Residential loft units may be constructed on the 2nd and 3rd floor in lieu of commercial space on Lots 26-31. Residential lofts and or multi-family units may be constructed on the 1st floor in lieu of commercial space on Lots 26-30 twenty-four (24)-months after the core and shell Certificate of Completion is issued by the City Building Department for the first floor. A Site Plan Amendment will be required to document the layout of the first floor. No less than 7,640 square feet of commercial space must remain on the first floor of Lots 26-30 and cannot be converted into residential units. Residential lofts or multi-family units are prohibited on Lot 25 and the building on Lot 25 can be no more than two (2) stories.

When residential lofts or multi-family is constructed in lieu of commercial, one residential unit will use 400 square feet of available commercial space.

Each building within Block 1, Lots 4-31 may cover up to 100% of the platted lot.

Section 9. Development Performance Standards.

2. **Primary Entrance Feature.** Any façade that faces a public street or civic open space shall contain a single-story primary entrance feature subject to the following:
 - a. The primary entrance feature shall have enhanced architectural details such as a canopy or arcade, recessions or projections of up to 5' in plain view, and decorative moldings, framing, or roof and awnings.
 - b. Primary entrance features shall occur at least every 75' along a building façade for commercial tenants. Where a single commercial tenant occupies more than 75' of building frontage, the facade shall be differentiated with distinguished bays of no more than 50' of linear frontage.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle